

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DEFENDANT'S MOTION TO STAY ENFORCEMENT OF JUDGMENT
PENDING APPEAL**

COMES NOW the Defendant, Marc Moszkowski, pro se, and respectfully moves this Honorable Court to stay enforcement of any final judgment entered in this case pending the resolution of Defendant's post-trial motions and anticipated appeal, pursuant to Florida Rule of Appellate Procedure 9.310 and Florida Rule of Civil Procedure 1.550. In support thereof, Defendant states:

1. Judgment is expected imminently, and the Court has indicated its intention to enter a final order resolving the claims brought against Defendant.

2. Defendant intends to file a timely Motion for Rehearing or Reconsideration and, if necessary, a Notice of Appeal, which would address the legal and procedural issues raised in the judgment.
3. Enforcement of the anticipated judgment would cause irreparable harm to Defendant and render appellate relief meaningless. Defendant is indigent and has no funds or assets available to satisfy any monetary judgment, surrender intellectual property, or comply with injunctive demands without judicial review.
4. Defendant resides in his ancestral home in France, where he lives in complete isolation with no friends or family. His limited financial resources are barely sufficient to cover essential living costs, including utilities, insurance, and basic sustenance for both himself and his eight dogs. His bank account balance is capped at €646 due to a judicial lien. He receives only \$900 per month in pension, which barely covers utilities, insurance, internet, and food for himself and the eight dogs who live with him. (See Affidavit of Indigency and Extraordinary Circumstances, filed contemporaneously.)
5. Defendant respectfully requests that the Court waive the supersedeas bond requirement, pursuant to Florida Rule of Appellate Procedure 9.310(b)(1), on grounds of documented indigency and

humanitarian necessity, as set forth in the contemporaneously filed Affidavit of Indigency and Extraordinary Circumstances.

6. The Court has discretion to issue a stay pending appeal without bond where enforcement would result in manifest injustice or moot the appellate process.
7. Plaintiffs will suffer no irreparable harm by temporary delay in enforcement. Defendant, by contrast, faces the imminent risk of homelessness, destruction of personal records, loss of animal companions, and irreparable harm to his ability to pursue meaningful appellate review and access to justice.

WHEREFORE, Defendant respectfully requests that this Court issue an immediate Order staying enforcement of any final judgment entered in this case, pending the resolution of Defendant's Motion for Rehearing and appeal, and waiving any supersedeas bond requirement due to indigency and the demonstrated risk of irreparable harm.

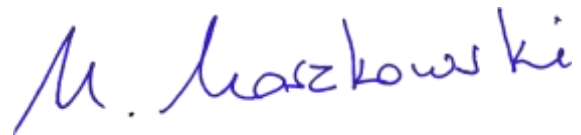
Respectfully submitted this 14th day of July, 2025.

Marc Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Le Verdos

83300 Châteaudouble, France



CERTIFICATE OF SERVICE

I hereby certify that, on this 14th day of July, 2025, a copy of this Motion has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

